

law, or circumstances. (Code of Civil Procedure § 1008(a)-(b); *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1098.) “The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008(a).)

Plaintiff fails to submit any declaration, much less one that includes the above information. It also fails to indicate what ‘new or different facts, law, or circumstances’ support a motion for reconsideration.

Plaintiff’s motion is **denied**.

In Opposition, Defendants requests the Court consider whether sanctions are appropriate under California Code of Civil Procedure sections 128.5 and 128.7.

Initially, the Court notes that any request for affirmative relief made in an opposition is improper and will not be considered by the Court. “An application for an order is a motion.” (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent [Party] seeks affirmative relief, it is required to file a motion seeking such relief.

In addition, sanctions under both Code of Civil Procedure sections have strict procedural requirements including a ‘safe harbor’ provision which requires the party seeking sanctions to serve the ‘offending party’ with the motion for sanctions. If Defendants believe that Plaintiff’s actions are sanctionable they need to follow the proper procedures for seeking sanctions.

The Court will not consider a request for sanctions made in an opposition that has not adhered to any of the procedural requirements for such a request.

Conclusion

Plaintiff’s Demand to Rescind Crimes Based Order is **denied**.

10. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO KATRINA M. KREBS FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

11. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MEGAN R. BRILLAULT FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING: